

A CHRONOLOGICAL ACCOUNT OF EVENTS ACROSS THREE CONTINENTS

I. FORMATION OF DEEPGULF, INC. AND INITIAL CONDITIONS

1. Based in Houston, Texas, since 1998 as a project manager for a European offshore engineering company, Marc Moszkowski had, by 2000, reached a position enabling him to develop and advance his own engineering patents in the offshore oil and gas construction industry.

In September 2004, he met businessman Rustin Howard in Pensacola, Florida. In December of that year, they incorporated DeepGulf, Inc., on the basis of Moszkowski's J-Flex patent. Each initially held a 50% ownership interest in the company.

Following limited capital contributions by third-party investors, Moszkowski remained, at all relevant times, the principal shareholder of DeepGulf, Inc., holding more than 46% of its equity.

2. Moszkowski served as President and was responsible for all technical aspects and business development. Howard served as Chairman of the Board of Directors and was responsible for capital raising and for immigration sponsorship.
3. For three years — 2005, 2006, and 2007 — Howard did not raise any capital. During that period, Moszkowski received no salary, despite the terms of his H1-B visa, which provided for an annual salary of \$120,000 and had been personally guaranteed by Howard to the Department of Homeland Security.
4. For three years, Moszkowski funded all business development efforts from his private income derived from personal consultancy for various offshore oil and gas companies, in an amount of approximately \$75,000 annually, or \$225,000 in total.

II. ORIGIN OF THE EAST TIMOR OPPORTUNITY

5. On September 10, 2007—nearly three years after incorporation and five days after Moszkowski had formally expressed his profound disappointment with Howard's failure to raise capital—Moszkowski received an inquiry from East Timor concerning the construction of a major offshore pipeline.
6. On November 12, 2007, at the invitation of two individuals holding dual Timorese and Australian citizenship, Moszkowski traveled at his own expense to East Timor, in the East Indies archipelago north of Australia. His hosts arranged a series of meetings over three days, with the President of the Republic, the Prime Minister, the Speaker of the House, the Secretary of State for Natural Resources, and various dignitaries and members of the diplomatic corps.
7. Moszkowski returned to the United States, again at his own expense, and single-handedly prepared a proposal for a major project in the Timor Sea, which was then submitted to the Timorese government by the two Timorese individuals.

III. INITIAL CAPITAL AND RETURN TO EAST TIMOR

8. In January 2008, Moszkowski received his first salary after Howard raised capital from family and friends. That capital eventually reached \$650,000.
9. On February 29, 2008, Moszkowski traveled back to East Timor, then in violent turmoil following an assassination attempt on both the President and the Prime Minister, which left the President with two gunshot wounds to the chest and one to the abdomen. The United Nations Integrated Mission in East Timor extended until the end of 2012 the peacekeeping presence it had established in mid-2006.

IV. CREATION OF TOKE OIL AND GAS S.A. AND CONTRACTS

10. In the same month, Toke Oil and Gas S.A., a Timorese corporation, was registered by the two Timorese individuals, who invited Moszkowski personally to participate as a 33% partner and offered him the position of President Director-General. No offer of partnership was made to DeepGulf, Inc., a U.S. entity with

limited capitalization. Moreover, at that time, in conditions of political instability, any direct involvement by DeepGulf, Inc. would have entailed significant risks for the company. Moszkowski therefore agreed to assume those risks personally. At the time of incorporation, no contract had yet been signed.

11. On March 20, 2008, a \$5.2 million project contract was executed between Toke Oil and Gas S.A., a Timorese corporation, and the Government of East Timor. The Government was subsequently replaced, as client, by a consortium of ten major South Korean chaebols, including Samsung, STX, Kogas, and GS Caltex, with Toke Oil and Gas S.A. remaining the project's service provider.
12. Moszkowski proposed to the Timorese founders that each would receive 25% of the profits generated by Toke Oil and Gas S.A., while the 33% share to which he was entitled would, in practice, be structured as to result in DeepGulf, Inc. receiving 50% of the profits, by way of redistribution in its favor. This structure required substantial discussion before agreement was reached. Following the execution of three contracts, DeepGulf, Inc. ultimately received 50.3% of the profits corresponding to Moszkowski's 33% interest, while the Timorese founders jointly received 49.7% corresponding to their 67% interest.
13. The first project was successfully completed without involvement from Howard or DeepGulf, Inc.
14. In 2009, Toke Oil and Gas S.A. signed a second project contract with the Government of East Timor for \$3 million, and a third in 2010 for \$6.7 million, bringing the total to \$14.9 million, equivalent to approximately \$21 million in 2026 dollars. All projects were successfully completed without involvement from Howard or DeepGulf, Inc. Their execution was funded through the cash flow generated by the Timorese entity.

V. OPERATIONAL CONDITIONS AND PERSONAL RISK

15. Operationally, Toke Oil and Gas S.A.'s activities took place in extremely remote locations without reliable means of transportation or access to healthcare,

exposing Moszkowski to serious risk of harm, including death, on multiple occasions. He sustained injuries resulting from road and bridge collapse, flash flooding, and a violent assault by armed, masked robbers. He was also involved in a ship grounding for eighteen days on a coral reef inhabited by sharks and saltwater crocodiles, and nearly drowned in heavy swells during salvage operations that he had organized and was directing.

In April 2011, Moszkowski contracted a severe strain of Papua New Guinea malaria, known to be potentially lethal, with initial symptoms appearing during the final leg of a return trip to Pensacola. On May 13, in critical condition, he was admitted for six days to the emergency department of Gulf Breeze Baptist Hospital, where he ultimately survived.

During each of the three projects in East Timor, he also lost more than twenty pounds of body mass as a result of inadequate nutrition and lack of access to appropriate healthcare.

VI. CONTINUED CONTRIBUTIONS AND FINANCIAL FLOWS

16. Between projects in Timor, Moszkowski personally carried out several consulting engagements for a French offshore oil and gas construction company and transferred all resulting earnings to DeepGulf, Inc. through the end of 2014, totaling \$125,500.
17. At the end of 2012, DeepGulf, Inc. purchased Toke Oil and Gas S.A.— by then an entity without ongoing commercial activity—from the Timorese shareholders for \$100,001 in cash.
18. Following this acquisition, DeepGulf, Inc. stopped paying Moszkowski's salary, despite Howard's commitment and personal guarantee to the Department of Homeland Security.
19. In February 2017, upon the expiration of his H-1B visa—which did not result in permanent residency despite repeated assurances—Moszkowski, after nearly

twenty years in the United States, was compelled to leave the country abruptly and without resources. He was subsequently described in opposing counsel's filings as having "absconded." DeepGulf, Inc. then owed him a total of \$1,129,500, including unpaid salaries for the years 2005, 2006, 2007, 2013, 2014, 2015, and 2016, as well as part of 2017, together with \$225,000 in reimbursement due for initial expenses. The unpaid salaries had been personally guaranteed by Howard on his own assets to the Department of Homeland Security. This amount excludes accumulated interest since 2005.

VII. PERSONAL FINANCIAL CONSEQUENCES

20. This situation must be considered in light of the fact that, in May 2007, Moszkowski inherited the rural family estate in southeastern France. The associated inheritance tax, at a rate of 55%, was payable in eleven semiannual installments, for a total equivalent of \$595,000. Moszkowski paid the first installments, totaling \$200,000, from his personal savings. He was unable to pay the remaining \$395,000, despite having generated nearly \$15 million in project revenue, as DeepGulf, Inc. did not reimburse the \$225,000 he had personally expended to fund business activities in 2005, 2006, and 2007, nor the unpaid salary for those years, totaling \$360,000, for an aggregate amount of \$585,000.
21. In order to address this shortfall, one of the two Timorese founders offered to cover part of the outstanding amount and provided \$345,000 from his own share of the profits of Toke Oil and Gas S.A.
22. In the following months, Moszkowski informed DeepGulf, Inc., through Howard, in writing and without exception, of all such payments.
23. In June 2013, still lacking approximately \$50,000 for his last tax installment, Moszkowski requested from DeepGulf, Inc. a corresponding advance on salary already due to him. In response, Howard personally arranged for and executed a transfer of that amount, using his own name as the sender.

However, rather than recording the transfer as salary—consistent with its purpose—Howard subsequently characterized it as a personal loan to Moszkowski from one of Howard’s business associates, David Rumsey, bearing an interest rate of 17%. A draft loan agreement was transmitted to Moszkowski, naming Rumsey as lender, although no arrangement had been made directly between Moszkowski and Rumsey, the document did not include the handwritten statements required under French law, nor Moszkowski’s handwritten signature, and was described by Howard for more than four years as a financial “gimmick” between himself and Rumsey relating to prior dealings, not to be of concern to Moszkowski.

In fact, no funds were ever transferred by Rumsey to Moszkowski, and Moszkowski had no prior correspondence or dealings of any kind with Rumsey before receiving, more than four years later, a demand for repayment of that alleged loan with interest.

This recharacterization occurred notwithstanding the fact that, less than three weeks after the transfer, Moszkowski had allocated \$95,000 of personal consulting income to DeepGulf, Inc., specifically to cover salaries due to him. This income was earned in the course of a demanding overseas assignment for a French oil and gas construction company, beginning on June 22, when Moszkowski departed for Singapore and subsequently West Africa.

This transfer was intended to support DeepGulf, Inc. financially, in particular to enable it to cover salaries due to Moszkowski including the \$50,000 salary advance. It also had the practical advantage of avoiding duplicative tax reporting, without affecting the overall tax exposure.

The funds so transferred were not applied to Moszkowski's benefit.

It should further be noted that, at that time, the defendant was unaware of the commitment undertaken by Mr. Howard before the Department of Homeland Security, including a personal guarantee on his assets, which was only disclosed to him in 2018.

Separately, Moszkowski made repeated requests between 2018 and 2025 for the implementation of the indemnification provisions set forth in the By-Laws of DeepGulf, Inc., but no action was taken, nor was any consideration given to those requests in the conduct of the proceedings.

VIII. LITIGATION HISTORY

24. In 2018, Rumsey initiated proceedings against Moszkowski before a French court for the amount of the 2013 salary advance, together with several years of interest, while DeepGulf, Inc. and Toke Oil and Gas S.A. initiated an action before the courts of the State of Florida, asserting, inter alia, that the sums intended to cover Moszkowski's tax liability had been improperly paid to him and were required to be restituted. This claim formed part of a broader assertion encompassing the entirety of the flows generated by the activities of Toke Oil and Gas S.A.

It follows that if the sums at issue were to be restituted, they could only be returned to the Timorese shareholder and founder of Toke Oil and Gas S.A. from whose share they originated, and not on the basis of any corporate entitlement of DeepGulf, Inc. This is difficult to reconcile with the claims subsequently asserted, particularly as the relevant flows predate DeepGulf's acquisition of Toke Oil and Gas S.A.

The action brought in the United States proceeded before the federal court through a fully adversarial process. On the merits, Moszkowski prevailed, having retained counsel a few months prior to judgment at significant personal expense.

As to the conduct of the proceedings, the court determined that the hearing would proceed without Moszkowski's physical or remote participation. He had been unable to attend in person due to the travel restrictions then in force, including the prohibition on entry into the United States from Europe during the COVID-19 period. A request for remote appearance was submitted, opposed by

the opposing party, and was not granted. Confirmation of those restrictions was obtained from the relevant U.S. authorities only after the trial had taken place.

The hearing concerned, to a significant extent, Moszkowski's counterclaims, the principal claims having already been addressed at the summary judgment stage. In the course of that hearing, documents submitted by the opposing party, including materials of a determinative nature, were received without objection, in the absence of Moszkowski, and his counterclaims were denied.

Although the federal proceedings resulted in a substantive adjudication of the principal claims on the merits, no such examination was conducted in the Florida state court, to which the case was subsequently remanded on the basis that Toke Oil and Gas S.A., although already devoid of effective legal existence, purportedly affected diversity of citizenship.

As a result, matters previously examined within an adversarial framework were not subjected to any renewed effective consideration. The action had moreover been filed after the expiration of the applicable statute of limitations, without any formal authorization by the governing bodies of the plaintiff entities appearing in the record.

In both proceedings, Moszkowski was unable to appear at the hearing. In France, he was not notified of the hearing date and became aware of it only several months later. In Florida state court, his request to appear remotely was denied at the opposing party's urging, while he resided abroad, lacked the financial means to travel, his assets and bank accounts having been seized, and was suffering from a serious medical condition, including two massive bilateral inguinoscrotal hernias, rendering long-distance travel materially impossible. He was consequently held in default, and his defenses and counterclaims were stricken.

The final judgment was issued following a procedure in which the trial court requested counsel for the prevailing party to prepare and submit a proposed order, which was then adopted by the court.

In both proceedings, the courts did not require the plaintiffs to establish any legal title to the funds at issue, nor did they examine the underlying transactions so as to determine their origin, ownership, or characterization. The finding of civil theft in the amount of \$345,000 was based primarily on a short pre-suit demand letter (Plaintiffs' Exhibit 13), consisting solely of unsubstantiated allegations by counsel, without any supporting documentation or evidentiary material, and was nevertheless treated as "clear and convincing evidence," without any independent examination of the origin, ownership, or characterization of the funds at issue.

In both proceedings, the plaintiffs were represented by counsel, whereas Moszkowski was not, whereas Moszkowski was not, notwithstanding the indemnification provisions set forth in Article XI of the By-Laws of DeepGulf, Inc., which required the Corporation to indemnify its officers and directors for legal expenses incurred in connection with proceedings arising from their corporate functions, including proceedings brought by or in the right of the Corporation, unless and until a final adjudication establishes circumstances excluding such indemnification. Multiple requests made by Moszkowski between 2018 and 2025 for the implementation of these provisions remained without response and were not the subject of any judicial consideration.

25. Moszkowski has filed a timely appeal against the Final Judgment before the Florida First District Court of Appeal (1DCA).

In January 2026, Moszkowski, acting as plaintiff, initiated a separate action before the United States District Court for the Western District of New York (WDNY), based in part on allegations of fraudulent conduct, against several of the individuals involved in the present dispute.

EPILOGUE

Viewed in their chronological sequence, the events described above reveal a progression whose internal logic becomes apparent when considered as a whole.

In the years following the capital contributions made by family members and close associates, the absence of corresponding results placed those who had solicited such contributions in a position of increasing difficulty.

At the same time, the projects developed and executed by Moszkowski, although substantial in scale and outcome, had not been financed by those contributions, but through separate arrangements and resources.

This divergence between the origin of the funds and the source of the results created a situation in which acknowledgment of the actual sequence of events would have required explanations unlikely to meet the expectations of those concerned.

In such a context, a reformulation of the narrative emerged, in which the flows of funds and the attribution of responsibility were progressively reconsidered.

The resulting position had the effect of reallocating to Moszkowski the financial consequences of operations he had neither funded nor controlled within the structure in question, while the elements that might have clarified the origin and use of the funds were not brought into consideration.

The circumstances under which Moszkowski was subsequently required to leave the United States, after nearly two decades of presence and without the anticipated transition to permanent residency, despite the process that had been represented as underway, further contributed to a situation in which his responses to the representations then being made could no longer be effectively received or considered, and in which his departure could thereafter be presented as that of someone who had “absconded.”

PROJECTS AND CONTRACTS:

[Bathymetric, Geophysical, Geotechnical, and Metocean Surveys in Timor-Leste](#)¹

MARITIME AND PETROLEUM INROADS:

[Methods, patents, innovations, surveys](#)²

FULL CASE RECORD AND SUPPORTING EVIDENCE (ONLINE ACCESS):

[All pleadings in federal, state, and appeal courts](#)³

Contact: m.moszkowski@yahoo.com

¹ [https://marc-moszkowski.github.io/Eastseas/Energy/BGGM Projects.pdf](https://marc-moszkowski.github.io/Eastseas/Energy/BGGM%20Projects.pdf)

² <https://marc-moszkowski.github.io/Eastseas/Patents.html>

³ [https://marc-moszkowski.github.io/Dockets/Marc Moszkowski US Cases.html](https://marc-moszkowski.github.io/Dockets/Marc%20Moszkowski%20US%20Cases.html)

OBSERVATIONS

About Institutional Constraints on Judicial Review

Florida comprises 67 circuit courts and a total of 619 circuit judges. On average, each circuit judge is assigned approximately 1,317 new cases per year.

Assuming a working year of 40 hours per week over 48 full weeks, this represents 1,920 working hours annually. Dividing 1,920 hours by 1,317 new cases yield about 87 minutes per case for the entire year.

This figure necessarily includes all judicial activity, including hearings, trials, administrative duties, scheduling, and related functions, leaving only a fraction of that time available for the review of pleadings and evidence. If one assumes, conservatively, that no more than one third of that time can be devoted to substantive case review, the available time is reduced to approximately 29 minutes per case.

The present matter alone comprises more than 4,000 pages, in Arial 14 and double spacing, corresponding to approximately 600,000 words. At 29 minutes for 600,000 words, this implies a notional rate of study of approximately 20,000 words per minute. For reference, Supreme Court Justices have said they read between 115 et 167 words per minute.

The impossible rate of 20,000 words per minute is incompatible with any meaningful analysis. It follows that, under ordinary conditions, a file of this size cannot realistically be examined in detail within the available judicial time budget.

These constraints are structural. They illuminate the practical conditions under which judicial decisions are rendered, particularly in cases involving voluminous records.

In such a context, the manner in which a case is presented may assume particular significance. Where one party is represented by locally based counsel and presents its position in a form adapted to the procedural expectations of the forum, while the foreign opposing party, located abroad, proceeds without representation and relies on a large

volume of supporting material, the structural constraints described above may affect the practical accessibility of the respective positions, particularly in matters extending across multiple jurisdictions, involving technical or specialized issues, and spanning a prolonged period of time. In the present case, the underlying events concern three continents, a dozen countries, and a period of more than twenty years.

The constraints described above must also be considered in light of the practical position of the parties. Moszkowski, residing abroad, was unable to secure local representation and was therefore required to rely on extensive written submissions. Those submissions, although voluminous and documented, were not the subject of any discernible examination on the merits within the state proceedings, in which the opposing party was represented by counsel.

It may further be observed that, prior to remand, the same matter had been the subject of proceedings before the federal court located within the same judicial district, in which Moszkowski, then represented, prevailed on the principal claims following adversarial examination. The existence of that prior adjudication does not, however, appear to have altered the practical conditions under which the case was subsequently examined.

The foregoing analysis is directed at the institutional conditions under which the decision was rendered. Within such conditions, and irrespective of the quality or completeness of the material submitted by the defense, the system does not, in practice, permit a thorough and balanced examination of a case of this nature.

The issue that arises is therefore not one of individual error, but of the capacity of the judicial system, in its ordinary conditions of operation, to ensure effective access to justice. This consideration assumes particular importance when assessing, under French law, the effects of a decision rendered in such a context.

It may also be observed that Moszkowski's submissions, although prepared and filed without the assistance of counsel, were accepted for filing without exception. A total of 202 filings were submitted, each of which was subject to review by the clerk of the court for compliance with applicable procedural and technical requirements. None was rejected on such grounds.

While the absence of legal representation may affect the form and presentation of submissions, the systematic acceptance of these filings indicates that they met the formal requirements of the jurisdiction in which they were made.